

# ORBITCLEAR TECHNOLOGIES LTD

## Business Continuity & Disaster Recovery Policy

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| Field                 | Value                                                             |
|-----------------------|-------------------------------------------------------------------|
| Owner                 | Chief Operating Officer                                           |
| Approver              | Management Risk Committee                                         |
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| Supersedes            | v2.3 (23 October 2023)                                            |
| Regulatory references | DORA Arts 11, 24–27 · MAS TRM §8 · HKMA SA-2 · FFIEC BCM Handbook |

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## 1. Purpose and Scope

This Policy establishes OrbitClear's approach to business continuity and disaster recovery for the OrbitClear Post-Trade Processing System ("the System"). It applies to all production services and the personnel and third parties supporting them.

## 2. Definitions

| Term                           | Definition                                                                                                            |
|--------------------------------|-----------------------------------------------------------------------------------------------------------------------|
| Recovery Time Objective (RTO)  | The maximum tolerable elapsed time between a disruption and the restoration of a service to its minimum viable level. |
| Recovery Point Objective (RPO) | The maximum tolerable amount of data loss measured in time.                                                           |
| Important Business Service     | A service the disruption of which could cause intolerable harm to financial stability or to customers.                |
| Primary site                   | AWS Europe (Ireland) region (eu-west-1).                                                                              |
| Secondary site                 | AWS Europe (Frankfurt) region (eu-central-1); active-standby.                                                         |
| Archive tier                   | Long-term immutable storage used for records retained pursuant to regulatory obligations. See §6.4.                   |

## 3. Roles and Responsibilities

| Role                                 | Responsibility                                                                                  |
|--------------------------------------|-------------------------------------------------------------------------------------------------|
| Chief Operating Officer              | Sponsor of the BC/DR programme; escalation point for invocation.                                |
| Head of Site Reliability Engineering | Design and operation of the DR architecture; execution of exercises and real-world invocations. |
| Business Continuity Manager          | Business-Impact Analysis; coordination with service owners; maintenance of recovery plans.      |
| Incident Commander                   | Tactical command during an invocation; liaison with the CISO.                                   |
| Client Success                       | Client notification per the client-communication matrix.                                        |

## 4. Business Impact Analysis and Recovery Objectives

A Business Impact Analysis is performed annually by each service owner and reviewed by the Business Continuity Manager. The BIA assigns each service to one of four tiers (Tier 1 – Tier 4) with recovery objectives as follows:

| Tier                  | Example                                                                                                         | RTO      | RPO        |
|-----------------------|-----------------------------------------------------------------------------------------------------------------|----------|------------|
| Tier 1 — Critical     | Post-Trade Processing System (real-time trade capture, matching, break workflow, regulatory reporting pipeline) | 2 hours  | 15 minutes |
| Tier 2 — Important    | Client Administration Console, reporting data-lake                                                              | 8 hours  | 1 hour     |
| Tier 3 — Standard     | Internal tooling, analytics sandbox                                                                             | 24 hours | 4 hours    |
| Tier 4 — Non-critical | Internal knowledge base, marketing site                                                                         | 72 hours | 24 hours   |

## 5. Disaster-Recovery Architecture

### 5.1 Topology

The System operates in an active-standby topology across two AWS Regions within the European Economic Area:

- **Primary:** AWS eu-west-1 (Dublin, Ireland). All production customer traffic is served from this region.
- **Secondary (active-standby):** AWS eu-central-1 (Frankfurt, Germany). Stateful services replicate synchronously from Primary; stateless services are pre-warmed for immediate traffic take-over.

## 5.2 Replication

The primary transactional store (Amazon Aurora PostgreSQL) uses cross-region synchronous replication. Object storage (Amazon S3) is replicated using Cross-Region Replication with replication time targets under 15 minutes. Event streams (Amazon MSK / Kafka) are mirrored using MirrorMaker 2 with RPO measured in seconds.

## 5.3 Failover

Failover between primary and secondary is automated for application tier and semi-automated (with COO or designated deputy approval) for database promotion. Target failover time is within the Tier 1 RTO of 2 hours.

# 6. Data Protection, Backup and Long-Term Retention

## 6.1 Operational Backups

Operational backups are taken from the primary region on a continuous basis (Aurora continuous backup / point-in-time recovery) and on a daily snapshot basis. Daily snapshots are encrypted under a dedicated KMS key and retained for 35 days. Weekly snapshots are retained for 12 months.

## 6.2 Backup Residency

Operational backups are held within the European Economic Area, in AWS eu-west-1 and eu-central-1 only. Cross-region replication for operational backups is EU-to-EU.

## 6.3 Restore Testing

Weekly automated restore tests are executed against a representative sample of databases. Quarterly full-restore tests are executed against the full production data set into an isolated environment, with results reported to the CISO and Business Continuity Manager.

## 6.4 Long-Term Regulatory Archive

Certain records must be retained for statutory periods exceeding the operational-backup horizon, including the following:

- Transaction records submitted to Approved Reporting Mechanisms and Trade Repositories — 5–7 years (MiFIR Art 25, EMIR Art 9, CFTC 17 CFR §45.2, MAS SFA §47, HKMA OR-1 retention schedule).
- Client confirmations, break-management case history and communications material to a regulated trade — 7 years.
- Audit and security logs — 7 years (per §10 of the Information Security Policy).

**To meet these obligations cost-efficiently, immutable archive copies of these records are replicated to Amazon S3 Glacier Deep Archive in the AWS us-east-2 (Ohio) Region.** Archives are encrypted client-side with AES-256 prior to transmission, using a dedicated Archive Master Key held in AWS CloudHSM. Write access is limited to the Archive Service Role (machine identity). Read access and restore actions require dual authorisation by the CISO and the Chief Compliance Officer, executed through a break-glass workflow, and are logged and reviewed monthly. Recovery from archive is not part of the Tier 1 RTO and is on a best-effort basis (typically 48–72 hours for Deep Archive retrieval).

*Note: The choice of us-east-2 reflects Glacier Deep Archive pricing and the long-term retention nature of these records. Customer-specific residency requirements, if any, should be discussed with the Account Team; OrbitClear will*

on a case-by-case basis offer an EU-Region archive at additional cost.

## 7. Exercise Programme

| Exercise                                    | Frequency   | Participants                                             |
|---------------------------------------------|-------------|----------------------------------------------------------|
| Tabletop — cyber crisis                     | Quarterly   | Executive Crisis Team, CISO, COO, Legal, Comms           |
| Regional failover drill                     | Semi-annual | SRE, Platform Engineering, service owners                |
| Full DR test (primary → secondary cut-over) | Annual      | SRE, all service owners, sample customer cohort (opt-in) |
| Long-term archive restore rehearsal         | Annual      | Records Management, SRE, CISO Office                     |

Results of each exercise are documented in an After-Action Review and reported to the Management Risk Committee. Remediation actions are tracked to closure. The last full DR test was performed 14–15 February 2026 and achieved an actual RTO of 1 hour 42 minutes.

## 8. Crisis Management and Communication

On invocation of the BC/DR Plan, the Incident Commander convenes the Executive Crisis Team. Client Success executes the client-communication matrix, providing initial notification within 30 minutes of invocation and hourly updates thereafter. Regulator notifications (where applicable) are made by the CISO with Legal support.

## 9. Supplier Resilience

Suppliers material to the continuity of the Service (Tier 1 and Tier 2 sub-processors per the Third-Party Risk Management Policy) are assessed for resilience during onboarding and annually thereafter. Supplier exit plans are maintained for all Tier 1 sub-processors.

## 10. Review and Version History

| Version | Date        | Author     | Summary                                                                                 |
|---------|-------------|------------|-----------------------------------------------------------------------------------------|
| 2.4     | 18 Nov 2024 | COO Office | Annual review; DORA alignment update; clarification of §6.4 long-term archive controls. |
| 2.3     | 23 Oct 2023 | COO Office | Update following Feb 2023 DR-test lessons learnt.                                       |
| 2.2     | 11 Aug 2022 | COO Office | Initial alignment to ISO 22301.                                                         |